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Pemberton Rowe LLP

FAO Alistair Whitlock

(also sent to: The Directors, Cryovance Cold Chain Limited, Unit 9 Calder Park, Wakefield WF4 3GH)

Our ref: WC-00188 / SW / TG

7 November 2025

Dear Sirs

LETTER BEFORE ACTION

Hartwell Pharma Limited and Cryovance Cold Chain Limited – Logistics and Cold-Chain Services Agreement dated 22 March 2024

We act for Hartwell Pharma Limited ("Hartwell"). This is a letter before action sent in accordance with the Practice Direction on Pre-Action Conduct. We invite your client to treat it with the seriousness it deserves.

Background

Your client, Cryovance Cold Chain Limited ("Cryovance"), provides our client with specialist temperature-controlled logistics under the Services Agreement dated 22 March 2024. Cryovance holds itself out as a GDP-accredited cold-chain provider and is paid a premium accordingly. Under clause 4 of the Services Agreement, all consignments described as cold-chain (2–8°C) must be carried within a continuously maintained 2°C to 8°C range, in qualified, calibrated and continuously data-logged equipment, and any deviation must be alarmed and reported to Hartwell without delay.

The two excursions

1. On 14 September 2025 Cryovance collected batch DS-2025-041 of HRX-118 drug substance for delivery to our client's fill-finish partner. Overnight on 15 September 2025 the refrigeration unit failed and the load compartment exceeded 8°C for over nine hours, peaking at 19.4°C. No alarm was raised. The batch was destroyed.

2. On 9 October 2025, after your client had assured us the first event was an isolated fault, Cryovance collected batch DS-2025-047. The driver left the validated route and switched off the refrigeration unit during a rest break; the load compartment peaked at 14.1°C. That batch, too, was destroyed.

Our client's claim

HRX-118 drug substance has no permitted excursion above 8°C; both batches are total losses. Our client's losses comprise the value of the destroyed batches (£1,420,000 and £1,165,000), re-manufacture and expediting costs of £612,400, and QP investigation, quarantine and disposal costs of £88,600 – a total of £3,286,000, together with interest. Our client's claim is for breach of clauses 4.1, 4.3 and 4.4 of the Services Agreement and breach of the implied term to exercise

reasonable care and skill.

We anticipate that your client may seek to rely on the limitation clause at clause 11.3. For the avoidance of doubt, our client's position is that clause 11.3 does not on its proper construction limit liability for breach of the core cold-chain obligations, and is in any event unreasonable under the Unfair Contract Terms Act 1977 in the circumstances of two destructive excursions, the second after notice of the first.

Action required

We require your client, within 21 days, to: (a) acknowledge liability; (b) provide the full vehicle, driver, route and temperature-logging records for both consignments; and (c) put forward proposals to compensate our client. If your client does not respond substantively within that period, our client will issue proceedings without further notice and will rely on this letter on the question of costs.

Yours faithfully

Whitfield Carter LLP

Confidential and may be legally privileged.